

26PDUD01328 26PDUD01328

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Case Number: 26PDUD01328 Hearing Date: September 18, 2026 Dept: D

TENTATIVE RULING

Calendar: 3

Date: September 18, 2026

Case No: 26PDUD01328 Trial Date: Not yet set

Case Name: HUSPRF Reit LLC v. Tonetto, et al.

DEMURRER

[CCP § 430.10 subds. (e) and (f)]

Moving Party: Defendants, Rodrigo Tonetto and Solange Girardelle

Responding Party: Plaintiff, HUSPRF 290 North Hudson Ave LP

RELIEF REQUESTED:

Sustain demurrer to First Amended Complaint.

CAUSES OF ACTION: from First Amended Complaint

1) Unlawful Detainer

REQUEST FOR JUDICIAL NOTICE

The Court may take judicial notice of “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States” and of “[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.” (Evidence Code, § 452, subds. (c)-(d).)

Pursuant to Defendants’ request, the Court takes judicial notice of the following: (1) The FAC filed in this action, including the attached Three-Day Notice to Pay Rent or Quit; (2) Initial Notice of Non-Compliance issued by the City of Pasadena Rent Stabilization Department, dated March 24, 2025, concerning the subject property, stating that the property was out of compliance with Pasadena Charter Article XVIII due to its failure to register for fiscal years 2024 and 2025, and advising that no rent increase or upward adjustment of rent was authorized during the period of noncompliance; and (3) Rental Registration Certification issued by the City of Pasadena Rent Stabilization Department on June 17, 2025, concerning the subject property and stating that the property was then in compliance with its registration obligations under Pasadena Charter Article XVIII. (RJN, Exs. 1-3.)

SUMMARY OF FACTS:

HUSPRF 290 North Hudson Ave LP (“Plaintiff”) is the owner of real property located at 290 N. Hudson Avenue #103E, in Pasadena, CA 91101. Rodrigo Tonetto and Solange Girardelle (collectively, “Defendants”) are tenants in the property pursuant to a June 1, 2025 lease agreement. Plaintiff served Defendants with a 3-day notice to pay rent or quit on April 13, 2026. The FAC alleges that Defendants failed to comply with the requirements of the notice.

ANALYSIS:

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; CCP, § 430.10, subd. (e).)

To sufficiently allege a cause of action, a complaint must allege all the ultimate facts—that is, the facts needed to establish each element of the cause of action pleaded. (Committee on Children’s Television, Inc. v. General Foods Corp. (1983) 35 Cal.3d 197, 212, superseded by statute as stated in Branick v. Downey Savings & Loan Assn. (2006) 39 Cal.4th 235, 242.) “[E]ach evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.)

In testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-67.) Courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228, disapproved on other grounds, Jones v. Lodge at Torrey Pines Partnership (2008) 42 Cal.4th 1158, 1162.) A demurrer, however, “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A demurrer for uncertainty lies where the pleading is uncertain, ambiguous, or unintelligible. (CCP, § 430.10, subd. (f).)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616 [disapproved on other grounds].) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading, but it rather is directed only at uncertainty existing in the allegations already made. (People v. Taliaferro (1957) 149 Cal.App.2d 822, 825, disapproved on other grounds in Jefferson v. J.E. French Co. (1960) 54 Cal.2d 717, 719-720 [statute of limitations question].)

Where a complaint is sufficient to state a cause of action and to apprise a defendant of issues he is to meet, it is not properly subject to a special demurrer for uncertainty. (Gressley v. Williams (1961) 193 Cal.App.2d 636, 643 [“A special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet”].)

Unlawful Detainer

A tenant is guilty of unlawful detainer when “the tenant continues in possession, in person or by subtenant, without the permission of the landlord, [...], after default in the payment of rent, pursuant to the lease or agreement under which the property is held, and three days’ notice, excluding Saturdays and Sundays and other judicial holidays, in writing, requiring its payment, stating the amount that is due, the name, telephone number, and address of the person to whom the rent payment shall be made, and, if payment may be made personally, the usual days and hours that person will be available to receive the payment [...], or the number of an account in a financial institution into which the rental payment may be made, and the name and street address of the institution [...], or if an electronic funds transfer procedure has been previously established, that payment may be made pursuant to that procedure, or possession of the property, shall have been served upon the tenant and if there is a subtenant in actual occupation of the premises, also upon the subtenant.” (CCP, § 1161 subd. (2).)

Accordingly, the basic elements of unlawful detainer for nonpayment of rent contained in CCP section 1161 subdivision (2) are “(1) the tenant is in possession of the premises; (2) that possession is without permission; (3) the tenant is in default for nonpayment of rent; (4) the tenant has been properly served with a written notice; and (5) the default continues after the three-day notice period has elapsed.” (Kruger v. Reyes (2014) 232 Cal.App.4th Supp. 10, 16.)

“Due to the summary nature of such an action, a [notice to pay rent or quit] is valid only if the landlord strictly complies with the provisions of section 1161, subdivision 2.” (Levitz Furniture Co. v. Wingtip Communications, Inc. (2001) 86 Cal.App.4th 1035, 1038.)

Defendants argue that the unlawful detainer claim fails because the FAC does not plead the facts necessary to establish Plaintiff’s right to recover possession.

First, Defendants argue that the FAC fails to plead facts showing whether the \$2,288.00 demanded in the notice to pay rent or quit, comprised of eleven \$208 monthly delinquent payments, is for unpaid rent or other non-rent obligations. (Demurrer, pp. 6:22-9:9; RJN, Ex. 1.) Defendants argue that the FAC thus does not establish that the \$2,880.00 demanded constitutes a monetary default under the lease agreement which supports a lawful claim for unlawful detainer.

In the opposition, Plaintiff argues that the notice or pay rent or quit includes all the statutorily required elements. The notice to pay rent or quit describes the amounts as delinquent rent. (RJN, Ex. 1.) Plaintiff argues that Defendants’ contention that the \$208 monthly amounts “might” be for “utilities, RUBS charges, parking fees, late fees, passthroughs, trash charges, pest-control charges, or some other category of charge” and thus not actually delinquent rent or a proper basis for an unlawful detainer claim, is a factual dispute not properly resolved on demurrer. (Opp., p. 8:2-8.)

On the face of the FAC, the \$2,880.00 in allegedly delinquent rent is not clearly improper. A demurrer lies only to defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true. (Aubry, supra, 2 Cal.4th at p. 967.)

If Plaintiff in fact imposed an improper rent increase, or if the \$208 monthly amounts constitute some category of charge unrelated to rent, either circumstance could constitute grounds to conclude that the unlawful detainer is not proper. However, nothing on the face of the FAC or in the judicially noticed documents establishes either proposition. These issues present factual disputes that are more appropriately resolved through discovery, and if necessary, at trial or on summary judgment, rather than on demurrer.

Second, Defendants argue that the FAC is deficient on its face because Plaintiff alleges that the tenancy is not subject to the Tenant Protection Act of 2019 (“TPA”), however fails to identify the specific subpart supporting why tenancy is exempt. (Compl., § 7.) Defendants argue that neither the exemption provided by Civil Code section 1946.2, subdivision (e)(7) or (e)(8)

apply to the subject property. (Demurrer, p. 9:18-28.)

In the opposition, Plaintiff argues that neither CCP section 1161 subdivision (2) nor Civil Code section 1946.2 require a plaintiff to plead a specific TPA exemption. Plaintiff argues that the "Judicial Council's optional form UD-100, while revised to include a field for the 'specific subpart' of Civil Code § 1946.2, does not create a new element of the cause of action."

Undoubtedly, when checking the box on the Judicial Council form UD-100 stating that a tenancy is not subject to the TPA, the better and more legally sound practice is also to complete the subpart identifying the applicable exemption. The TPA enumerates nine categories of residential properties and circumstances to which the section does not apply, including transient hotels, nonprofit and care facilities, dormitories, certain owner-occupied residences, properties with certificates of occupancy issued within the last 15 years, single-family homes or condominiums meeting specified ownership criteria, and housing restricted as affordable housing. (Civil Code § 1946.2, subd. (e)(1)-(9).) Based on the facts alleged in the FAC, it is not clear which, if any, of these exemptions would apply to the subject premises. The property is not alleged to be a hotel, care facility, dormitory, or owner-occupied property. Nor does the FAC allege that the rental unit is alienable separately from the title to any other unit in the building, or that the property is subject to a recorded restriction designating it as affordable housing. Finally, the FAC alleges that the premises were constructed in 2003. (FAC, § 3.b.(1).) Accordingly, it does not appear from the allegations that a certificate of occupancy for the premises would have been issued within the last 15 years.

Accordingly, given the strict pleading requirements governing unlawful detainer actions, and the requirement that a complaint affirmatively allege all facts necessary to support recovery, the Court finds that the FAC is uncertain. Merely checking the box indicating that the TPA does not apply, without identifying the applicable exemption, is insufficient, particularly where, as here, the facts alleged in the FAC do not indicate that any exemption applies.

The demurrer is SUSTAINED, with leave to amend.

RULING:

Defendants Rodrigo Tonetto and Solange Girardelle's Demurrer is SUSTAINED, with 15 days leave to amend.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.